

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

MOTION FOR ENLARGEMENT OF TIME
SERVICE BY AIR, INC.

Respondent, Service By Air, Inc. (“SBA”) respectfully requests an enlargement of the time to file exceptions, and the brief in support of such exceptions, to the Administrative Law Judge’s (“ALJ”) Initial Decision by 30 days.

Upon a showing of good cause, an enlargement of the the time for filing exceptions, and the brief in support of such exceptions, to the ALJ’s Initial Decision may be granted. *See* 46 C.F.R. §§ 502.228, 502.102. Motions for enlargement of time must be received at least seven days before the scheduled filing date. *See id.* § 502.102(a). The ALJ’s Initial Decision was served on May 24, 2019. The current deadline to file exceptions and a supporting brief is Monday, June 17, 2019.¹ This motion is therefore timely.

SBA respectfully requests that the deadline to file exceptions and a supporting brief be extended 30 days, to July 17, 2019. There is good cause for this extension. The Initial Decision is 75 pages long and addresses matters that are legally and factually complex. Lead counsel for SBA is preparing for oral argument before the Washington State Supreme Court, in addition to managing numerous other matters. *See* Decl. of Steven W. Block ¶ 3. Counsel’s current workload and schedule necessitates a 30-day extension.

Counsel for SBA conferred with counsel for CMI Distribution, Inc. via email on May 30, 2019 regarding this motion for enlargement of time. *Id.* ¶ 2. Counsel for CMI consents to the requested 30-day extension. *Id.* ¶ 2.

Because good cause exists for an enlargement of time, and the request is timely and unopposed, SBA respectfully requests a 30-day enlargement of the time to file exceptions to the ALJ’s Initial Decision and a supporting brief to July 17, 2019.

¹ Twenty-two days after the date the ALJ’s Initial Decision was served is Saturday, June 15, 2019. Because the deadline falls on a Saturday, the period to file continues to run until the end of the next day that is not a federal holiday, Saturday, or Sunday. 46 C.F.R. § 502.101.

Dated this 30th day of May, 2019.

Respectfully submitted,



Steven W. Block

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Attorneys for Respondents

CERTIFICATE OF SERVICE

The undersigned declares that on the date stated below I caused to be served the foregoing document, upon the following in the manner of service indicated:

David Street
Brendan Collins
GKG Law, P.C.
The Foundry Building
1055 Thomas Jefferson Street NW
Suite 500
Washington, DC 20007
Attorneys for CMI Distribution, Inc.

- ☒ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

Phyllis Lang
LAS Freight System Ltd.
10th Fl, No. 44, Lane 11 Kuang Fu N. Rd.
Taipei, Taiwan
LAS Freight System Ltd.

- ☐ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Executed at Seattle, Washington, this 30th day of May, 2019.



Michelle Stark